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Japan has large, literate, trained industrious population, biggest industrial potential between Urals and US Midwest, and inevitable role leadership in Asia and is associate we cannot afford lose by mishandling this important juncture of changing relationships. I fully recognize weight of consideration advanced by JCS and necessity State-Defense teamwork and will do best to carry out final policy this matter.

SEBALD

No. 502

693.941/2-752:Telegram

The Secretary of State to the Embassy in the Republic of China [1]

SECRET
PRIORITY

WASHINGTON, February 8, 1952—7:34 p.m.

579. Reurtel 987, Feb 7. [2] Dept has through you and talks with Koo considerable insight into point of view Natl Govt and also through Dulles talks with Yoshida considerable insight as to what is in mind of Jap. From this we realize that there are certain differences which in themselves seem to us not to be of major importance but which, in atmosphere of suspicion and distrust, cld be magnified into serious obstacles to carrying out Yoshida letter to Dulles and desired result of harmony between two govts.

We have not however felt that at this stage we shld be intermediary and accordingly have not attempted communicate to Chi Natl Govt, either through Emb here or you, what we know of Jap ideas other than as publicly expressed in Yoshida letter and we have not attempted to give Jap Govt any interpretation of Chi Natl views except that under date of Jan 14 we advised Sebald for info of Yoshida that we believed Natl Govt wld accept formula of his letter to Dulles. [3]

It is our present view that negots shld be begun directly between the two govts; that they shld not be pressed or allowed to develop

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[1] Drafted and approved for transmission by Dulles; cleared with Allison in FE; and repeated for information to Tokyo marked "For Sebald."

[2] In telegram 987, Chargé Rankin stated that the Nationalist Government, while not expecting a formal reply, desired clarification on two points before the Japanese Delegation arrived in Taipei to negotiate the proposed bilateral peace treaty. "Chi Govt wants bilateral 'peace treaty' in name and in substance." Also, the government wanted the scope of the treaty's application to be covered in a document separate from it. The Chinese Government, concluded Rankin, assumed the latter point had been "discussed with Japs when US conveyed to them one of Chi Govt formulas which subsequently incorporated in Yoshida ltr to Dulles." (693.941/2-752)

[3] See Topad 1955 to Tokyo, Document 472.

into any inflammable stage but that points which two parties cannot agree on shld be laid aside until agreement reached on oher matters and then if both sides desire US wld consider in light of then circumstances using its good offices to endeavor to complete agreement.

What follows is for your info and such informal communication to Natl Govt as you think appropriate.

We were disposed in principle to accept position that formula now in Yoshida-Dulles letter cld be expressed in separate protocol doc rather than in treaty itself. However, we now feel it may not be practical to exclude formula from treaty.

We note Chi draft [4] repeats provisions of multilateral Treaty giving rights to Natls, products and vessels of the "Republic of China" and then apparently attempts to cut down scope of rights by limiting them to Natls, products and vessels of "Formosa and the Pescadores". Even this however is not done adequately.

This seems to us unsatis. It fails to reflect important feature of Yoshida-Dulles formula that Treaty shall be applicable to terrs "which may hereafter be under control of Natl Govt" [5] and in fact limits treaty operation for all time merely to islands mentioned. We wld think it preferable a) that treaty be made between "the Govt of Japan and the Natl Govt of the Republic of China"; b) that treaty be simplified so as to reduce necessity for internal definitions; and c) that final clause of the treaty limit its application to Natls, products or vessels of China in terrs "now or hereafter under control of Natl Govt of the Republic of China."

We attach, and assume Natl Govt attaches, utmost importance to meticulous avoidance of any treaty provision in favor of China which cld give rights to Commie China other than contemplated by Art 21 of multilateral Treaty or give rights to persons, products, vessels, aircraft or anything else now or hereafter under Commie *de facto* control. Also we attach importance to the "hereafter" feature of formula both to avoid any possible impairment internatl prestige Natl Govt and also to avoid possible rights to Commies if perchance any single particle of Formosa and Pescadores group shld temporarily fall under *de facto* Commie control. Therefore, from both standpoints we believe treaty shld be with "Natl Govt of Republic of China" and limited to its *de facto* control now or hereafter rather than to geographically defined territories.

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[4] Chinese draft as of this date not found in Department of State files.

[5] Quotation is apparently a paraphrase from penultimate sentence of third paragraph of the Yoshida letter.

Further detailed comments may follow. [6]

ACHESON

[6] In telegram 999 from Taipei, Feb. 11, Rankin in part stated: "FonMin [George K.C. Yeh] expressed appreciation Dept's comments re scope application (Deptel 579 February 8) and is reexamining Chi Govt draft with these considerations in mind. Ref to 'Nationalist' Govt in treaty presumably not feasible since this is not official name but same result may be obtained other ways." (693.941/2-1152)

No. 503

611.94/2-852

Memorandum by the Assistant Secretary of State for Far Eastern Affairs (Allison) to the Secretary of State

TOP SECRET [WASHINGTON,] February 9, 1952.

Subject: Collective Defense Measures with Japan

Problem

We have received two telegrams from Mr. Rusk [1] dealing with Article XXII of the Administrative Agreement which describes the collective defense measures which may be taken "in the event of hostilities or imminently threatened hostilities in the Japan area". He requests a United States Government position as to whether we press for the language in our present draft or authorize modifications of it to meet the Japanese viewpoint.

Background

Article XXII constituted one of the major points of difference between State and Defense, and it seemed likely that the decision would have to be put up to the President. However, agreement was finally reached to present to the Japanese a draft of Article XXII which provides for a unilateral United States determination as to whether an emergency exists and for the abrogation of the limitations imposed by the Administrative Agreement if necessary to carry out the purposes of Article I of the Security Treaty and to ensure the security of United States forces. A combined Command with a United States Commander may be established by agreement with the Government of Japan.

[1] Copies of telegram 1649 and Topad 1651 from Tokyo, Documents 500 and 501, are attached to the source text.

Other attachments, besides that printed below, include: Article I of the U.S.-Japan Security Treaty, the language of Article XXII from the Jan. 22 draft of the Administrative Agreement, and the original JCS language of Aug. 1951. For text of the last-named draft, see footnote 6, *Foreign Relations*, 1951, vol. VI, Part 1, p. 1283.

treaty, was satisfactory to FonOff except for minor points. He was so informing Generalissimo last night. "Minor" points involved questions of phraseology and matters related to entry sojourn fisheries and mining rights. FonMin thought all of these cld be resolved. In every case Chi Govt wishes adhere more closely to San Francisco text but is willing compromise on working within limits.

Wajima called yesterday and informed me he intends return to Tokyo Apr 15. He hopes and apparently expects to take back with him an agreed draft for consideration by Jap Cabinet. Latter wld involve about five days, due certain necessary procedures, after which two weeks needed to pass treaty through Diet. Wajima's latest info is that an American Treaty will become effective about Apr 25. He hoped Diet wld be able act on bilateral treaty before end of session early May.

Feeling in Chi Govt circles is that treaty again well on way and only serious hurdle is possibility Jap Govt "repudiating" its del as Chi consider happened on Mar 28.

RANKIN

No. 555

693.941/4-1452: Telegram

The Chargé in the Republic of China (Rankin) to the Department of State [1]

SECRET NIACT TAIPEI, April 14, 1952—11 a. m.

1315. In meeting between Chi and Jap dels treaty yesterday difference in wording scope of application clause as between second Chinese suggestion of Sept 26 (mytel 419, Sept 27) [2] and Yoshida letter to Dulles threatened create major stumbling block. Chi draft which apparently suggested phrasing in Yoshida letter (Deptel 531 Jan 17) refers to territories which are now and which may hereafter etc. Actual text of Yoshida letter, however, refers to territories which now or which etc.

In response to FonMin's query what Japs meant by "or" it became evident that Jap del was reading much into this choice of words re future of Formosa and possibly sovereignty over such islands as Kinmen [*Quemoy*].[3]

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[1] Repeated for information to Tokyo.

[2] See *Foreign Relations*, 1951, vol. VI, Part 1, p. 1362.

[3] In telegram 1316 from Taipei, Apr. 14, repeated to Tokyo, Rankin in part reported: "Further inquiry indicates Chi-Jap differences over wording of scope of treaty's application result from fact that both in Chi and Jap languages 'or' indicates degree

Continued

Urgently request Dept's interpretation above point. [4]

RANKIN

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of exclusivity which in English would be rendered 'neither—or [*nor*]'." (693.941/4-1452)

[4] In Topad 748 to Taipei, Apr. 14, repeated to Tokyo, drafted in CA and cleared in NA and FE, the Department referred the Embassy to telegram 579 (Document 502) and stated: "Dept does not believe that difference opinion over use word 'and' or 'or' should be any 'stumbling block'." (693.941/4-1452) However, in telegram 230 from Taipei to Tokyo, Apr. 15, repeated to the Department as telegram 1319, Rankin reported that the Japanese Delegation had indicated it would accept the Chinese position in the matter and that Yeh therefore did not want the position taken in Topad 748 conveyed to the Japanese Government. (693.941/4-1552)

No. 556

693.941/4-1952: Telegram

The Chargé in the Republic of China (Rankin) to the Department of State [1]

SECRET TAIPEI, April 19, 1952—11 a.m.

1334. Last night Foreign Minister confirmed to me reports mytel 1331, April 18, Tokyo 237, [2] Kawada has not communicated with him again but sent junior staff member Nagata to call on Chinese Vice Foreign Minister Hu at his residence. Nagata left taxi at distance from house and came on foot as he said to avoid reporters. He indicated Kawada thought Tokyo had let him down again and was greatly discouraged. Not only had Japanese FonOff refused accept Kawada's recommendation re scope application and property of collaborationist regimes but had also raised about five additional points which everyone here assumed settled.

Foreign Minister himself expressed discouragement. Although he did not advance it as his view, he indicated there was speculation in Chinese official circles whether latest development reflects shift Japanese govt position due (1) imminent coming into force San Francisco treaty, (2) possibility early armistice Korea (3) prospects trade with Chinese Communists encouraged by Moscow economic conference.

Foreign Minister further commented he understood cliques to exist in Japanese FonOff. Kawada as personal friend Yoshida re-

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[1] Repeated for information to Tokyo.

[2] In this telegram the Embassy reported that negotiators for the Republic of China and for Japan had on Apr. 16 tentatively reached agreement on treaty terms but that Kawada had received new instructions which appeared to jeopardize the conclusion of a treaty. (693.941/4-1852)

No. 561

796.00/4-2952:Telegram

The Supreme Commander, Allied Powers (Ridgway) to the Department of the Army

RESTRICTED
PRIORITY

TOKYO, April 25, 1952—11:12 a.m.

C 67454. A. Following receipt of notification of the termination of the post of Supreme Commander for the Allied Powers which I have held by authority of the President since 11 April 1951, I have issued orders eff 2230 hours 28 April 1952, for the inactivation of Gen Hqs, Supreme Commander for the Allied Powers, and all its appointive agency. Admin disposition of records and property and release of remaining assigned personnel will proceed with dispatch.

B. In closing this historic operation I wish to express my sincere gratitude to the DA, the JCS, and the Secretary of Defense for their unfailing support and guidance throughout my tenure of office. I also take this opportunity to commend the many men and women, military and civilian, who have served in the occupation of Japan. By their integrity, loyalty, devotion to dy and exemplary conduct, they have helped to write a unique chapter in the annals of the US military establishment and in the history of US Foreign Relations. In so doing, they have helped to establish a firm foundation for a structure of enduring friendship and cooperation between the peoples of Japan and the US.

C. In case parts of this message are to be used in Wash ceremony, for your info Tokyo release of related actions will be at 28 April, 1400I.

No. 562

693.941/4-2652

The First Secretary of the Mission in Japan (Steeves) to the Department of State

RESTRICTED

TOKYO, April 26, 1952.

No. 1459

Subject: Observations on Foreign Policy and the Administrative Agreement by Kumao Nishimura

There is enclosed for the Department's information a generally self-explanatory Memorandum of Conversation between Mr. Kumao Nishimura, Chief of the Treaty Bureau of Ministry of For-

eign Affairs, and Mr. R. B. Finn of the Mission. The Mission suggests the following specific comments regarding the enclosed memorandum:

1. Mr. Nishimura indicated his feeling that Japan was going too far toward meeting the position of the National Government of China in the present negotiations and said he had been overruled at least once by the Prime Minister. There have been reports in the press to the effect that certain high officials of the Foreign Office are split in their views as to how far Japan should go in dealing with National China and that Mr. Nishimura was the leader of the "go slow" group. Mr. Nishimura's statements reported in the enclosed memorandum may be evidence in support of these press reports, although he indicated that Japan desires to conclude an agreement with National China.

2. The remarks attributed to Prime Minister Yoshida to the effect that Japan might be able to assist the United States in dealing with Far Eastern problems appear to be a reiteration of the Prime Minister's view that Japan knows more about China than does the United States. It would appear probable that the Prime Minister has not abandoned his idea that Japan should engage in some limited relations with Communist China, possibly to serve as a "fifth column" on behalf of the democracies.

3. Mr. Nishimura's remarks about the more favorable impression of the Administrative Agreement being received by the Japanese appear to conform with the optimistic view he has several times expressed to the effect that once Japanese people understood the Agreement and the intentions of the United States, criticism and resentment would largely subside. At the time the Agreement was being negotiated, Mr. Nishimura expressed the opinion that dissatisfaction then being voiced in the press would disappear once the Agreement was made public, an opinion that was not justified by the reception accorded the Agreement on its publication.

4. Mr. Nishimura's comment that depurgees feel resentment toward the United States because of their purge is considered to foreshadow a significant problem in future Japanese relations with the United States, although the future importance of the purgees and the extent of their anti-Americanism are not presently foreseeable.

JOHN M. STEEVES

[Enclosure]

Memorandum of Conversation, by the Second Secretary of the Mission in Japan (Finn)

RESTRICTED TOKYO, April 23, 1952.

Subject: Diplomatic Problems Faced by Japan; Administrative Agreement

Participants: Mr. Kumao Nishimura, Chief of Treaty Bureau, Ministry of Foreign Affairs
Mr. R. B. Finn, Second Secretary of Mission

In an informal conversation on April 22 the following matters of possible interest were discussed.

1. *Relations with China.* Mr. Nishimura said that on April 22 Prime Minister Yoshida, Minister of State Okazaki, and he had discussed the negotiations now taking place in Taipei. The Prime Minister and Mr. Okazaki decided that Japan should attempt by statements in the Official Minutes to meet the position of the National Government regarding the scope of application of the proposed treaty, despite Mr. Nishimura's objection that Japan was going too far to meet the Chinese position. He also said that Chinese representatives were concerned that the wording of the clause on the treaty's scope of application ("territories now *or* hereafter under control of National Government") might raise an inference that National China's claim to Formosa could be subject to some form of United Nations control depending on future developments.

Regarding the Yoshida letter of December 24 to Mr. Dulles, Mr. Nishimura said that the Prime Minister had been strongly impressed by his discussion of the China problem at San Francisco with Secretary of State Acheson, [1] who had advised Japan not to be "hasty" in making its decision about a peace settlement with China. Mr. Yoshida had therefore been "very much vexed" by later developments in United States policy and by the position taken by Mr. Dulles, who had been present at the conversation in San Francisco.

Mr. Nishimura indicated, however, that Japan was fully prepared to make strenuous efforts to reach agreement with National China. Mr. Nishimura also said the Prime Minister was extremely interested in United States Far Eastern policy and had many times expressed the view that Japan, as an old nation familiar with the Far East, could assist and even guide the United States, which is inexperienced in foreign policy and has got itself in a "circle" on the China question.

2. *Relations with Korea.* Regarding the present negotiations, Mr. Nishimura observed that the issues raised by the property claims of the two Governments were so complicated that months would be required to settle them. I asked whether the Japanese Government actually expected that it would recover any of its property in Korea, private or public, and Mr. Nishimura said no and added

[1] For a memorandum by Sebald of a conversation held at San Francisco on Sept. 3, 1951, between the Prime Minister and Secretary Acheson, Dulles, and other American officials, see *Foreign Relations*, 1951, vol. VI, Part 1, p. 1315.

that the Japanese position was designed largely to protect Japan against the excessive claims being made by Korea to property in Japan. I asked how Mr. Nishimura thought the problem would be solved and he said that eventually the Japanese expected a reciprocal waiver of claims and were attempting to maneuver the Koreans into a position where the Koreans would make this proposal. I asked whether the Japanese expected the Koreans to waive their claims to allegedly looted cultural objects, postal savings accounts, wages due conscript labor, and items of that sort, and Mr. Nishimura replied that Japan hoped to include these items in any reciprocal waiver of claims since the amounts claimed by Korea would probably be very high.

I commented that it was desirable for Japan and Korea to have some legal basis for diplomatic relations upon the coming into force of the Peace Treaty. Mr. Nishimura said that within a few days Japan would propose to the Koreans that notes be exchanged providing for establishment of diplomatic relations; I inferred the Japanese proposal would be made without prejudice to the present discussions. Mr. Nishimura felt that United States assistance in gaining Korean acceptance of this proposal might be sought.

By way of comment, Mr. Nishimura said he thought the San Francisco Treaty was defective in the treatment accorded Japanese external assets, although he agreed with my observation that some such solution as Article XIV, A,2, was necessary in view of the watered-down reparations provisions of the Treaty. Mr. Nishimura also said President Rhee's view that Japan's control of Korea from 1910 to 1945 was illegal and all acts thereunder null and void posed a serious obstacle to resolution of problems between the two countries and he indicated that he was pessimistic concerning their good relations while President Rhee remains in office.

3. *Diplomatic Relations with Other Countries.* Mr. Nishimura said the Japanese Government was gratified and encouraged by the cordiality attending its negotiations with a number of other countries for resumption of diplomatic relations. He said this was particularly so in respect to India, with whom relations will be established on April 28 pursuant to exchanges of notes. Similarly, arrangements have been made with Spain, Portugal, Italy, Norway, Denmark, Yugoslavia, and apparently several other countries. In the case of the Philippines and Indonesia Japan has proposed that diplomatic relations be resumed on April 28; this proposal will probably be accepted by Indonesia and possibly by the Philippines, despite the failure of both countries to ratify the Peace Treaty, although there is considerable concern in Manila lest the Philippine Senate consider its constitutional prerogatives to be involved. Diplomatic relations with the Netherlands will also be resumed on

April 28 by an exchange of notes, although the Netherlands has not yet ratified the Peace Treaty.

In regard to the Soviet Union Mr. Nishimura said the Japanese Government intended to follow closely the policy to be declared or otherwise adopted by the United States in respect to official Soviet activity in Japan. I got the impression that the Japanese do not contemplate issuing any strong statement or taking any strong measures in this regard. Mr. Nishimura also said that a Soviet vessel is expected to arrive at a Japanese port on or shortly after April 28 and that the problem of how to treat its passengers and cargo is now under consideration by the Foreign Office, added emphasis being given to this matter since this will be the first test of post-treaty Japanese-Soviet relations.

4. *Administrative Agreement.* I asked Mr. Nishimura whether in his opinion the Japanese attitude toward the Administrative Agreement and the security arrangements with the United States would prove to be a serious obstacle to good relations between the two countries. He said no and that he felt the Japanese were already gaining a favorable impression of United States intentions, particularly as a result of the accomplishments of the Preliminary Working Group and the understanding attitude of the American representatives in the Group. He expects that future steps to implement the Administrative Agreement will further the good impression already made. I observed that a number of Japanese critics, such as Professors Kisaburo Yokota and Hikomatsu Kawakami, had made sharp attacks on legal points in the Agreement and had gone unchallenged, and I inquired whether the Japanese Government might in some way attempt to present a more balanced picture to the Japanese public. Mr. Nishimura said the Government was aware of the need for fuller information on the Agreement and that it was planned to issue a pamphlet on April 28 explaining the Agreement and refuting some of the legal criticisms made against it.

I asked whether Mr. Nishimura felt there had been in connection with the Administrative Agreement any significant development of anti-American feeling in Japan and commented that such a development together with a possible truce in Korea might seriously weaken the desire of many Japanese to cooperate wholeheartedly in the security arrangements with the United States. Mr. Nishimura said he thought a truce in Korea would undoubtedly lead many Japanese to believe that the threat to Japan's security, together with the need for American forces in Japan, was largely ended and that this situation would pose serious problems in the conduct of Japan's foreign policy. He also said that depurgees were showing marked antipathy toward the United States and he men-

tioned Professor Kawakami, Mamoru Shigemitsu, and former Foreign Minister Hachiro Arita [2] in this category. He said the latter two had several times told Foreign Office officials and the Prime Minister that Japan was following an unduly pro-American policy and that this was undesirable for Japan. Mr. Nishimura observed that most purgees could not help being anti-American as an expression of resentment over their treatment under the Occupation.

R. B. FINN

[2] Arita had been Foreign Minister several times. His last tenure had been January–July 1940.

No. 563

Editorial Note

On April 28, in a ceremony held at the Department of State, the United States deposited there its instrument of ratification of the Japanese Peace Treaty, thereby bringing the treaty into force between Japan and Argentina, Australia, Canada, France, Mexico, New Zealand, Pakistan, the United Kingdom, and the United States.

Immediately after the deposit of ratification, Ryuji Takeuchi, hitherto Chief of the Japanese Government Overseas Agency in Washington, presented his credentials to Secretary Acheson as Chargé d'Affaires of Japan. Ratification of the United States–Japan Security Treaty were then exchanged, bringing that treaty also into effect.

According to the Department's press release, dated April 28, both treaties were deemed to have gone into effect at 9:30 a.m. EST. For text of this release, with explanatory notes, see Department of State *Bulletin*, May 5, 1952, page 687.

For text of President Truman's proclamation of the Peace Treaty and of the termination of the state of war with Japan, dated April 28, see *ibid.*, page 689. A statement by Prime Minister Yoshida, read at the ceremony by Takeuchi, is *ibid.*, page 688. Dulles' statement dated April 28 is *ibid.*

Text of Allison's address, "A New Approach to Treaty Making", made before the American Society of International Law in Washington on April 24, is *ibid.*, page 689.

With the coming into force of the Peace Treaty both the office and the organization of SCAP came to an end, and the United States Embassy in Japan was reestablished. Ambassador Murphy,